City of
Evanston™

CITY OF EVANSTON
DENIAL OF REQUEST FOR PUBLIC RECORDS UNDER FOIA

To: Michael Molitch-Hou

On November 23, 2022, the City of Evanston received your written request for the inspection, copying, or certification of certain City public records ("Your Request") pursuant to the Freedom of Information FOIA ("FOIA").

1. Denial of Request

___ Your Request is hereby denied in its entirety. The reason(s) for denial are stated in Paragraph 3 or reason stated below:

_X_ Your Request has been denied in part. The records for which Your Request is denied and granted are detailed below:

(a) Your Request is denied as to the following records (the "Specified Records"):

All personal information has been redacted

(b) Your Request is granted in part as the following records (the "Approved Records"):

Report number 22-9080.

Notice of the Right to Review

You have the right to file a request for review of Your Request and this Notice of Denial by the Public Access Counselor of the Office of the Illinois Attorney General. The Public Access Counselor may be contested at 500 South 2nd Street, Springfield, Illinois 62706, or by telephone at (217) 558-0486. In addition, you have the right to seek judicial review of this denial.

2. Justification of Denial

Your Request is being denied with respect to the Specified Records because the Specified Records are exempt from disclosure pursuant to FOIA for the following reason or reasons (references are to sections of FOIA):

(a) Personal Privacy

_X_ The Specified Records are private information. § 2(c-5), § 7(1)(c)

(b) Internal Operations

__ The Specified Records relate to pending negotiations for the purchase or sale of real estate. § 7(1)(r)

(c) Law enforcement and security

__ The Specified Records were created in the course of administrative enforcement proceedings, or for law enforcement purposes, and disclosure would:

__ interfere with a pending or actually and reasonably contemplated law enforcement proceeding by the City. § 7(1)(d)(i)

__ interfere with active administrative enforcement proceedings by the City. § 7(1)(d)(ii)

__ unavoidably disclose the identity of a confidential source or confidential information provided by the confidential source, or the identity of persons who file complaints with or provide information to administrative, investigative, law enforcements or penal agencies. § 7(1)(d)(iv)

__ disclose unique or specialized investigative techniques other than those generally used and known, and disclosure would result in demonstrable harm to the City. § 7(1)(d)(v)

__ endanger the life or physical safety of any person. § 7(1)(d)(vi)

__ obstruct or interfere with an active or ongoing criminal investigation by the City. § 7(1)(d)(iv), § 7(1)(d)(vii)

(d) Juvenile Records:

__ 5 ILCS 140/7.5(bb) states that information which is or was prohibited from disclosure by the Juvenile Court Act of 1987 may be withheld from FOIA. 705 ILCS 405/1-7(A) specifies that **all** juvenile law enforcement records which have not been expunged are confidential and may never be disclosed to the general public or otherwise made widely available.

(e) Attorney Communications

__ The Specified Records were prepared or compiled at the request of an attorney advising the City in anticipation of criminal, civil, or administrative proceedings. § 7(1)(m)

__ The Specified Records were prepared or compiled with respect to an internal audit of the City. § 7(1)(m)

(f) Personnel

__ The Specified Records are test questions, scoring keys, or other examination data used to determine employment or license qualifications. § 7(1)(q)

__ The Specified Records relate to adjudication of an employee grievance or disciplinary case, and do not constitute the final outcome of a case in which discipline was imposed. § 7(1)(n)

__ The Specified Records relate to employee collective bargaining matters and do not constitute a final collective bargaining agreement. § 7(1)(p)

__ Disclosure of the Specified Records is prohibited by the Personnel Records Review FOIA. § 7.5(q)

(g) Not Public Records

__ The Specified Records are neither prepared by or for the City, nor have the Specified Records been or are being used by, or received by, the City. § 1, § 2(c)

__ The Specified Records are not within the City's possession or control, nor are the Specified Records related to a governmental function. § 1, § 2(c), § 7(2)

(h) Miscellaneous:

__ Your Request, couched in categorical terms, is unduly burdensome because the burden on the City of complying with Your Request outweighs the public interest in providing the Specified Records, and efforts to reduce Your Request to manageable proportions have been unsuccessful after the City's extension of the opportunity to meet and confer on the documents requested. § 1 &3(g)

__ Your Request is unduly burdensome because you have repeatedly requested the Specified Records, which records are unchanged or identical to records previously provided or properly denied pursuant to the FOIA § 3(g)

__ Disclosure of the Specified Records is specifically prohibited by the following Federal or State law, rule: _____§7(1(a))

(i) Body Camera Footage:

__ Disclosure of the Specified Records is prohibited by the Illinois Freedom of Information Act. 5 ILCS 140/7.5(cc)

__ Disclosure of the Specified Records is further prohibited by the Illinois Law Enforcement Officer-Worn Body Camera Act. 50 ILCS 706/10-20(b).

3. You have a right to appeal this decision within 60 days to Sarah Pratt, Acting Public Access Counselor, Office of the Illinois Attorney General, 500 S. 2nd Street, Springfield, Illinois 62706, (phone number 1-877-299-FOIA) or to seek judicial review under Section 11 of FOIA, 5 ILCS 140/11.

Dated: November 29, 2022

CITY OF EVANSTON

By: S Stewart

Title: Chief of Police

City of Evanston Public Record Requests

Request #22-2790
Open
As of November 29, 2022, 9:15am
Request Visibility: Embargoed – Will be auto-published 24 hours after closure

Details

To Whom It May Concern:

Pursuant to the Illinois Freedom of Information Act., I hereby request the following records:

Incident/investigation report for Case #22-009080, ORI IL163200, Deceptive Collection Practice 1185 for victim David A Walker.

The requested documents will be made available to the general public, and this request is not being made for commercial purposes.

In the event that there are fees, I would be grateful if you would inform me of the total charges in advance of fulfilling my request. I would prefer the request filled electronically, by e-mail attachment if available or CD-ROM if not.

Thank you in advance for your anticipated cooperation in this matter. I look forward to receiving your response to this request within 5 business days, as the statute requires.

Sincerely,

Michael Molitch-Hou

Upload documents directly: https://accounts.muckrock.com/accounts/login/?next=https%3A%2F%2Fwww.muckrock.com%2Faccounts%2Flogin%2F%3Fnext%3D%252Faccounts%252Fagency_login%252Fevanston-police-department-8699%252Fincidentinvestigation-report-evanston-police-dept-137335%252F%253Femail%253DFOIA%252540cityofevanston.org&url_auth_token=AAAaDee9ITYOpXpsB2NGI7AfttM%3A1oy2jr%3AfPI8q0aFHrPxGXsoBSFLsHq3LwhTwQV0YZaZtLw1WPU

Received

November 23, 2022 via web

Due

December 5, 2022

Departments

Police

Requester

Michael Molitch-Hou

137335-52665736@requests.muckrock.com
MuckRock News, DEPT MR137335 263 Huntington Ave , Boston, MA 02115
617-299-1832
N/A

Requester email status list

Request opened

- **Sent** *November 23, 2022, 9:18pm*
- **Delivered** *November 23, 2022, 9:18pm*

Tags

Documents

Public (pending)

(none)

Requester

(none)

Staff Only

(none)

Staff

City of Evanston Public Record Requests

smendoza@cityofevanston.org

Support

mrivera@cityofevanston.org
osheikh@cityofevanston.org
sjjones@cityofevanston.org
srodriguez@cityofevanston.org

Tasks

Timeline

Support Staff Added — Staff Only
mrivera@cityofevanston.org
Sarah Jones (Police)
Omar Sheikh
Saul Rodriguez
November 23, 2022, 9:18pm (auto-assigned)

Department Assignment — Public
Police
November 23, 2022, 9:18pm (auto-assigned)

Request Visibility — Staff Only
Embargoed
November 23, 2022, 9:18pm (auto-assigned)

Request Opened — Public
Request received via web
November 23, 2022, 9:18pm by Michael Molitch-Hou

INCIDENT/INVESTIGATION REPORT

Agency Name	Evanston Police Department
ORI	IL0163200
Case#	22-009080
Date / Time Reported	10/28/2022 17:04 Fri
Last Known Secure	06/01/2022 00:00 Wed
At Found	10/28/2022 17:04 Fri

INCIDENT DATA

Location of Incident	Gang Relat	Premise Type	Zone/Beat
718 NOYES ST - A1, Evanston IL 60201	NO	Residence/home	EPD, 76

	Crime Incident(s)		Weapon / Tools			Activity
#1	Deceptive Collection Practice 1185	(Com)	None			N
			Entry	Exit	Security	
#2	Crime Incident	( )	Weapon / Tools			Activity
			Entry	Exit	Security	
#3	Crime Incident	( )	Weapon / Tools			Activity
			Entry	Exit	Security	

MO

VICTIM

# of Victims 1 | Type: INDIVIDUAL | Injury:

	Victim/Business Name (Last, First, Middle)	Victim of Crime #	DOB / Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status
V1	WALKER, DAVID A	[redacted]	[redacted]				[redacted]	

Home Address	Email	Home Phone
[redacted]		[redacted]

Employer Name/Address	Business Phone	Mobile Phone
		[redacted]

VYR	Make	Model	Style	Color	Lic/Lis	VIN

OTHERS INVOLVED

CODES: V- Victim (Denote V2, V3) WI = Witness IO = Involved Other RP = Reporting Person (if other than victim)

Type: Injury:

Code	Name (Last, First, Middle)	Victim of Crime #	DOB / Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status

Home Address	Email	Home Phone

Employer Name/Address	Business Phone	Mobile Phone

Type: Injury:

Code	Name (Last, First, Middle)	Victim of Crime #	DOB / Age	Race	Sex	Relationship To Offender	Resident Status	Military Branch/Status

Home Address	Email	Home Phone

Employer Name/Address	Business Phone	Mobile Phone

PROPERTY

1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown
("OJ" = Recovered for Other Jurisdiction)

VI #	Code	Status Frm/To	Value	OJ	QTY	Property Description	Make/Model	Serial Number
1	09	7	$0.00		1	CREDIT/DEBIT CARDS	CHASE/Visa	

Officer/ID# MOKOS. D. (PATR. *184) (1358)

Invest ID# (0) | Supervisor GLYNN, E. (PATR, *1) (1347)

Status | Complainant Signature | Case Status Open 10/28/2022 | Case Disposition:

INCIDENT/INVESTIGATION REPORT

Evanston Police Department

Case # 22-009080

Status Codes 1 = None 2 = Burned 3 = Counterfeit / Forged 4 = Damaged / Vandalized 5 = Recovered 6 = Seized 7 = Stolen 8 = Unknown

	IBR	Status	Quantity	Type Measure	Suspected Type		
DRUGS							

Assisting Officers

Suspect Hate / Bias Motivated:

NARRATIVE

Officer(s) name and star number(s): Mokos#184/1358
Response address: 718 Noyes
Response date and time: 102822 1704
Nature of Call: Deceptive Practice
Recorded on Body Worn Camera: Y

In Summary: On listed reported date I took a phone report in regards to a deceptive practice.

I spoke with the victim: Walker, David. He stated he was formerly employed by a company called CDJ Technologies now known as Azul-3D. Walker stated the company provided him a work credit card through Chase Visa with number [redacted]. As of January 2022 Walker was no longer part of the company. He electronically locked the credit card and asked the company to close the account.

On today's date (102822) he received notification from Chase that he was in debt collection with them. Walker relayed he then contacted Chase and learned his work credit card was used in June of 2022 to purchase postal items totaling 276.00. Walker stated his credit score has declined as a result.

Being that Walker was not employed in June, Walker advised he did not make the purchase nor did he authorize the purchase. Walker reported there has been an ongoing dispute between him and the company since his departure and he wished the incident to be documented.

I provided Walker a report number.

Incident Report Related Property List

Evanston Police Department

OCA: *22-009080*

1	Property Description	Make	Model	Caliber
	CREDIT/DEBIT CARDS	*CHASE*	*VISA*	

Color	Serial No.	Value	Qty	Unit	Jurisdiction
		$0.00	*1.000*		*Locally*

Status	Date	NIC #	State #	Local #	OAN
Stolen	*06/01/2022*				

Name (Last, First, Middle)	DOB	Age	Race	Sex
Walker, David A	*05/13/1986*	*36*	*W*	*M*

Notes